

Nishikant S/O. Pramod Deshmukh vs Sai W/O. Nishikant Deshmukh, Thr. ... on 30 April, 2026

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55.wp3665.

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH : NAGPUR

WRIT PETITION NO. 3665 OF 2026

NISHIKANT S/O. PRAMOD DESHMUKH
VS

SAI W/O. NISHIKANT DESHMUKH, THR. P.O.A., GEETA PRAKASH DESHMUKH

Office notes, Office Memoranda of
Coram, appearances, Court's orders
or directions and Registrar's orders.

Court's or Judge's Order

Mr. J.T.Gilda, Senior Advocate a/b Mr. Z.Z. Haq, Advocate for
petitioner.
Mr. A.B. Mirza, Advocate for respondent.

CORAM : PRAFULLA S. KHUBALKAR, J.

DATE : 30.04.2026 Heard learned Senior counsel for the petitioner.

2. The petitioner's challenge is to the order dated 28.04.2025 passed by the Family Court, Amravati, by which the petitioner's application under Order XXXIX Rule 1 & 2 of the Code of Civil Procedure for grant of temporary ante-suit injunction, is rejected. The petitioner has prayed for an interim order to restrain the respondent from participating in the proceedings before the Court at Washington.

3. Learned counsel for the petitioner submits that the respondent-wife is prosecuting a petition for divorce before the Court at King County Superior Court, Prity 2/5 55.wp3665.2026 State Washington and the proceedings are at the final stage. It is submitted that the proceedings were initially filed by the husband at Washington Court seeking annulment of marriage, in which the wife had filed a counter claim seeking decree of divorce on the ground of irretrievable breakdown of marriage. He submits that this ground is not a ground available in accordance with the provisions of Hindu Marriage Act, 1955 and as such, the decree, if any, passed by the Court at Washington, cannot be recognized in India and would not be executable in India. He therefore submits that if the proceedings before the Washington Court are allowed to be contested then prejudice will be caused to the petitioner/husband since his petition for annulment of marriage is also pending before the Court at Amravati.

4. It has to be noted that initially the proceedings were filed before the Washington Court, by the husband, and the wife on an agreement based on their earlier consent for seeking annulment of marriage and thus, it is clear that the petitioner-husband has voluntarily submitted to the

jurisdiction of the Court of Washington at the relevant point of time. Further, it has to be noted that in the suit seeking ante-suit injunction filed by the husband before the Family Court at Amravati, the husband has earlier filed a similar application for temporary injunction under Order XXXIX Rule 1 & 2 of Prity 3/5 55.wp3665.2026 the Code of Civil Procedure, which was rejected by the Family Court by order dated 19.09.2025. This order was challenged by the husband before this Court and the application for interim relief was rejected by this Court by order dated 28.10.2025 in Writ Petition No.6257/2025.

5. The husband then challenged this order before the Hon'ble Supreme Court and after withdrawal of the SLP, pursued the Writ Petition No.6257/2025. On 26.02.2026, the Division Bench of this Court has passed the following order in Writ Petition No.6257/2025 :

"After having heard at length, when we were not not inclined to grant relief, the Counsel for the petitioner, on instructions, seeks permission to withdraw the petition.

2. Permission granted. The petition is disposed of as withdrawn. All points are kept open."

6. It has to be noted that this Court has recorded that after hearing the matter at length, when this Court was not inclined, the learned counsel for the petitioner/husband has, on instructions, sought permission to withdraw the petition.

7. In this background, only because the points were kept open, the husband has again filed an application under Order XXXIX Rule 1 & 2 of the Code of Civil Procedure before the Family Court at Amravati, which Prity 4/5 55.wp3665.2026 came to be rejected by the order dated 28.04.2026, which is impugned in the instant petition.

8. It has to be noted that the petitioner-husband has himself voluntarily submitted to the jurisdiction of the Washington Court by filing the proceedings for nullity. Further, the wife is prosecuting the counter claim which was filed in the same proceedings. So also, the petitioner/husband submits that the decree, if any, passed by the Court of Washington will not be executable against him in India. Further, it appears that the petitioner/husband wants to contest the proceedings according to his own convenience, at the place of his choice. It has also to be noted that the husband has earlier raised same grounds in the first temporary injunction application and has not raised any new grounds in this temporary injunction application, on which the impugned order is passed.

9. Although reliance is placed by the learned counsel for the petitioner on the judgment of the Hon'ble Supreme Court in the case of Madhavendra L. Bhatnagar Vs. Bhavna Lall, reported in (2021) 2 SCC 775 and Kishorekumar Mohan Kale Vs. Kashmira Kale, reported in 2026 SCC OnLine SC 448, however, it has to be noted in the instant case that the petitioner/husband has himself voluntarily submitted to the jurisdiction of the foreign Prity 5/5 55.wp3665.2026 Forum i.e. Washington Court and as such, prima facie, the judgments cannot be of any assistance at this stage.

10. For all the above-mentioned reasons, I am not inclined to grant any ad-interim relief at this stage, to restrain the respondent from participating in the proceedings before the Court of Washington.

11. In view of the controversy involved, issue notice to the respondents, returnable on 12.06.2026.

12. Mr. Mirza, learned counsel waives service of notice on behalf of respondent.

(Prafulla S. Khubalkar, J.) Signed by: Mrs. PrityPrity Gabhane Designation: PA To Honourable Judge Date: 30/04/2026 20:40:56